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File No.: EXP202305093

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on March 31, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that he is a neighbor of the respondent and that they have installed two surveillance cameras in their home that are clearly oriented towards the claimant's home, without having authorization for this (…).”—file no. 1—.

He provides images of the camera locations, documentation proving ownership of the affected property, and a report filed with the Civil Guard regarding the events (Annex Doc. I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on April 21, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in due time and form as evidenced by the acknowledgment of receipt in the file.

THIRD: On June 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On September 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they expressed the following:

“In the Initiation Agreement, allow me to say that I feel by this institution, as the evidence they claim to have refers to photographs taken from the claimant's home (…)

The only report filed with the Civil Guard by that individual against my partner, C.C.C., dates back to March 11, 2019 (…). I also send you the notification and requirement from the Court of First Instance and Instruction of (…), as an investigated party and to allow the Civil Guard to enter, to take note of the images from the cameras (…)

As can be seen from the photographs taken by this individual (depending on the angle) where they were taken, it seems that they point in one direction or another...

“By appearing before the Court of First Instance and Instruction of Casas Ibañez, (…) we have been provided with the files of both reports that were filed at the time (…) both having been dismissed by this Court and that this individual has used to file a complaint, without asking or inquiring anything before the Court (…)

Annex (A I) is provided with a total of 25 documents, remaining at the disposal of this Agency for any clarification or collaboration that may be required (…)

Along with the allegations, a letter from the Civil Guard—General Directorate—made in the context of police investigations is attached.

Additionally, an order (Court of First Instance and Instruction No. 1) Diligence PA 0000067/2021 in relation to an alleged “burglary with force” is attached.

SIXTH: On October 19, 2023, a was issued in which it is considered, based on the evidence provided, that the system of cameras installed complies with current legality, proposing the filing of the present proceedings as no infringement has been proven in the matter at hand.

SEVENTH: Upon consulting the database of this agency, it is noted that the proposal of the current procedure was notified on October 19, 2023, with the respondent accessing its content.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated March 31, 2023, through which the following is conveyed:

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“(…) who is a neighbor of the party being claimed against and has installed two video surveillance cameras in their home that are clearly oriented towards the home of the claiming party, without having authorization for this (…)” –folio no. 1--.

Second. It is established that the main responsible party is B.B.B., with NIF ***NIF.1, who does not deny the installation of the cameras.

Third. It is established that a video surveillance camera system has been installed without the orientation of the cameras affecting the private area of the claimant.

The documentary evidence provided (Annex I) allows us to confirm that the areas affected by the cameras are areas of the party being claimed against.

Fourth. There is no evidence of the processing of any personal data of the claimant and/or members of the family unit.

Fifth. It is established that there is an informative sign indicating that it is a video-surveilled area.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

II

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In this case, the complaint dated 31/03/23 is examined, which states the following:

“presence of video surveillance cameras that could affect the private property of the neighboring dwelling without justified cause”

Article 5.1 c) of the GDPR provides as follows: Personal data shall be:

“adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating neighboring parties with such devices, as well as monitoring areas of transit without justified cause. Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, as they are responsible for preventing criminal acts and ensuring safety in public roads, in accordance with the provisions of Organic Law 4/1997, of August 4, and its implementing regulations.

It is worth noting that even in the case of a “dummy” camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the areas of third parties who may feel intimidated by them, as they affect their free transit area.

III

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The party being claimed against states in a written document dated 03/10/23 that there is "bad faith" on the part of the claimant, as the facts have been analyzed in judicial proceedings, being aware that the cameras do not affect their private property.

Following the request of this agency, photographs (date and time) are provided that demonstrate that they affect their personal and domestic private area.

They even provide an informational sign for the video-surveillance area, although it is placed inside what is presumed to be a facility owned by them, reminding that if the cameras do not affect the area, the sign should be placed in a visible area from the outside (e.g., next to or on the entrance wall of the industrial facility as a guide).

All analyzed facts align with the fact that the claimant only observes the presence of cameras, which is logical given the proximity of the properties, but they neither capture their property nor, even less, carry out any associated with an identified or identifiable natural person according to the evidence provided. The owner of the industrial facility has a legitimate right to install a camera system, being primarily responsible for ensuring that they comply with current legality, as it is a measure proportional to the purpose of protecting the facility and the belongings that may be found therein.

And this has been recognized by jurisprudence, among others, STS 1220/2011, “Nothing prevents a private establishment from equipping its facilities with image capture mechanisms, for its own security, if they are located in common areas, excluding those spaces where intimacy is developed.”

The presence of cameras on the roof area is not unusual, as access to industrial facilities sometimes

occurs through this area due to being more unprotected, with the cameras equipped with motion sensors that activate with movement, and the claimant's property being at a certain distance, which even makes clarity in the case of a hypothetical personal data processing difficult.

What is visualized with the cameras only concerns the competent authorities to analyze it, provided there is reason for it; otherwise, it may undermine the purpose of the installation.

IV

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve that doubt in the most favorable way for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the guilt of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCO Auto 3-12-81).

V

In accordance with the above, having analyzed the statements of the party being claimed against, which collaborates with this agency, it can be concluded that it has not been proven that the cameras are directed towards the claimant's home and even less that they affect their personal and/or family privacy, beyond the mere visualization of them.

In the future, it is recommended that allegations to this or any other agency be made within the legally established timeframe, thus avoiding the processing of unnecessary procedures with the consequent cost for all affected parties.

Finally, the parties are reminded of the significance of the rights at stake, and they should avoid instrumentalizing this or any other agency in matters of "personal grievances," acting in good faith when providing all necessary documentation to substantiate a true infringement of rights within the framework of data protection in the future.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as no administrative infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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